

24STCV34196 24STCV34196

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-05

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Case Number: 24STCV34196 Hearing Date: August 5, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

James Cappell

;

Plaintiffs,

vs.

Nissan north America, Inc.

, et al.,

Defendants.

Case No.:

24STCV34196

Hearing Date:

August 5, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Enforce Settlement

MOVING PARTY: Plaintiff James Cappell

RESPONDING PARTY: No response.

Motion
to Enforce Settlement

The court
considered the moving papers filed in connection with this motion. No
opposition was filed.

DISCUSSION

Plaintiff James
Cappell ("Plaintiff") moves the court for an order enforcing a settlement
between Plaintiff and defendants Nissan North America, Inc. and Universal City
Nissan^[1]
("Defendants").

The court finds
that Plaintiff has not established a breach of the settlement agreement such
that there is any relief that can be granted by the court. Defendants' settlement
offer, accepted by Plaintiff on August 12, 2025, offered Plaintiff \$39,927.87,
plus attorney's fees, to repurchase Plaintiff's vehicle in exchange for a
release of claims and dismissal of the action. (Davoodi Decl. ¶¶ 3-4, Ex. A
[settlement email].) Defendants also required Plaintiff to produce a
"formal payoff or copy of the registration," and an "updated payment history"
before any settlement checks could be processed. (Id.) Plaintiff presents
no evidence that he or his counsel produced these materials to Defendants, and,

thus, no evidence that Defendants' obligations under the settlement were due.

The court

therefore denies the motion to enforce settlement.

If

the parties have entered into an agreement to settle the entire case, California Rules of Court, rule 3.1385, subdivision (a)(1) requires that Plaintiff "immediately file written notice of the settlement"

Plaintiff is required to file the notice on the mandatory Judicial

Council form "Notice of Settlement of Entire Case" (CM-200). The court may order a person, after notice

and an opportunity to be heard, to pay reasonable monetary sanctions for

failure without good cause to comply with that rule. (Cal. Rules of Ct., rule 2.30(b).) The court expect the parties to comply with

the requirements of the California Rules of Court.

ORDER

The court DENIES

plaintiff James Cappell's motion to enforce settlement.

The court orders plaintiff

James Cappell to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Robert B. Broadbelt III

Judge of the Superior Court

[1] Although defendant Universal City Nissan has not filed an answer to the complaint or otherwise appeared in this action, Plaintiff's motion refers to a "settlement agreement reached between the parties" (Plaintiff's motion, p. 1:28) and to "Defendants" throughout the motion.